

Subject: Town Meeting Petitions by Ordinary Citizens

From: Stephen Harrington <sth.alist@gmail.com>

Date: 4/24/22, 08:47

To: gchristiana@town.arlington.ma.us

CC: Douglas Heim <dheim@town.arlington.ma.us>

Dear Town Meeting Moderator Greg Christiana,

I read with interest your rules for the 2022 Arlington Town Meetings (annual and special) as described here:

<https://www.arlingtonma.gov/town-governance/town-meeting/members-email-list>

In particular:

2) General materials relevant to a Warrant Article, such as we find on our chairs, should be submitted by 10:00 a.m on the day of the meeting.
All materials must be clearly marked as to who is submitting them: i.e.: Name and Precinct Number, or which Town Department. Unidentified materials will not be posted.

How does an ordinary citizen, a non-resident, a group or committee submit written material, "such as we find on our chairs", to Town Meeting?

Can you clarify why unsigned material is restricted?

As you must know, in-person Town Meeting provides public access including leaving written material on member seats before Town Meeting begins. In-person Town Meeting also provides a venue for expression through sign holding, rallies, etc. to petition Members as they approach Town hall.

In the past, when the informal Town Meeting email list was merely ancillary, restrictions were not an undue burden on the general public. The decision to eliminate in-person Town Meeting makes electronic communication the only venue.

Care should be taken when restricting the general public's right to petitioning Town Meeting as a body.

How does the rule against unsigned expression preserve these activities for the general public?

I have CC'd Arlington Town Counsel on this correspondence so that he may assist you in understanding your rights and responsibilities in your new role as an elected official to the general public.

Please, provide a written response to the three specific questions above as soon as possible. Time is of the essence since Town Meeting begins soon.

Regards,

Stephen Harrington
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Arlington, MA